

- (a) purchase or bid for, either in person or by an agent, in his own name or in that of another, or jointly or in shares with others, any property put to auction under sect.83 or sec.84 or sec.85 or sec.90 or
- (b) in contravention of any direction of the railway administration in this behalf, engage in trade.

190. Procedure of delivery to railway administration of property detained by a railway servant.

If a railway servant is discharged from service or is suspended, or dies or absconds or absents himself, and he or his wife or widow or any member of his family or his representative refuses or neglects, after notice in writing for that purpose, to deliver up to the railway administration or to a person appointed by the railway administration, in the behalf any station, office or other building with its appurtenances, or any books papers, keys, equipment or other matters, belonging to the railway administration and in the possession or custody of such railway servant at the occurrence of any such event as aforesaid, any Metropolitan Magistrate or Judicial Magistrate of the first class may, on application made by or on behalf of the railway administration, order any police officer, with proper assistance, to enter upon the station, office or other building and remove any person found therein and take possession thereof, or to take possession of the books, papers or other matters, and to deliver the same to the railway administration or to a person appointed by the railway administration in that behalf.

Comment

Section 190 provides for the procedure to be followed by a railway servant for delivery of property detained by him to railway administration.

191. Proof of entries in records and documents. – Entries made in record or other documents of a railway administration shall be admitted in evidence in all proceedings by or against the railway administration, and all such entries may be proved either by the production of the records or other documents of the railway administration containing such entries or by production of a copy of the entries certified by the officer having custody of the records or other documents under his signature and stating that it is a true copy of the original entries and that such original entries are contained in the records or other documents of the railway administration in his possession.

Comment

Section 191 provides that entries in the records or other documents of the railway administration shall be admitted in evidence and the method of their proof.

192. Service of notice, etc., on railway administration. – Any notice or other document required or authorized by this Act to be served on a railway administration may be served, in the case of a Zonal Railway, on the General Manager or any of the railway servant authorized by the General Manager, and in the case of any other railway, on the owner or lessee of the railway or the person working the railway under an agreement –

- (a) by delivering it to him ; or
- (b) by leaving at his office ; or
- (c) by registered post to his office address.

193. Service of notice by railway administration. – Unless otherwise provided in this Act or the rules framed there under, any notice or other document required or authorized by this act to be served on any person by a railway administration may be served –

- (a) by delivering it to the person ; or
- (b) by leaving it at the usual or last known place of abode of the person ;
or
- (c) by registered post addressed to the person at his usual or last known place of abode.

Comment

Section 192 and 193 provide for the manner of service of notice on the railway administration and by the railway administration respectively.

194. Presumption where notice is served by post. – Where a notice or other document is served by post, it shall be deemed to have been served at the time when the letter containing it would be delivered in the ordinary course of post, and in proving such service, it shall be sufficient to prove that the letter containing the notice or other document was properly addressed and registered.

Comment

Section 194 provides that where a notice, etc. is served by the post it shall be deemed to have been served if it was properly addressed and registered.